

SENATE No. 259

The Commonwealth of Massachusetts

PRESENTED BY:

Mark C. Montigny

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to protect consumers from hidden car subscription service fees.

PETITION OF:

NAME:

Mark C. Montigny

DISTRICT/ADDRESS:

Second Bristol and Plymouth

SENATE No. 259

By Mr. Montigny, a petition (accompanied by bill, Senate, No. 259) of Mark C. Montigny for legislation to protect consumers from hidden car subscription service fees. Consumer Protection and Professional Licensure.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 192 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to protect consumers from hidden car subscription service fees.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 90 of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by inserting at the end thereof the following new section:-

3 Section 64. (1) For the purposes of this section, the following words shall have the
4 following meanings:-

5 “Consumer”, a buyer or lessee of a motor vehicle who resides in the commonwealth.

6 “Dealer”, any person or entity engaged in the business of selling, offering for sale,
7 leasing, or offering to lease a motor vehicle to a consumer.

8 “Motor vehicle” or “vehicle”, any vehicle as defined by section 1 that is offered for sale
9 or lease by a dealer to a consumer.

“Motor vehicle feature”, any convenience or safety function included on a motor vehicle, including but not limited to, heated seats or driver assistance technology, that is typically offered to a consumer as an upgrade at the time of purchase or lease of a motor vehicle.

“Subscription service”, means a service provided on a subscription basis in exchange for a recurring payment, including but not limited to, a weekly, monthly, or annual payment charged to and made by a consumer.

(2) No dealer of a motor vehicle shall offer or charge to a consumer a subscription service for any motor vehicle feature that:

(i) utilizes components and hardware already installed on the motor vehicle at the time of purchase or lease by the consumer; and

(ii) would function after activation without ongoing expense to the dealer, manufacturer, or any third-party service provider; provided, that routine software maintenance and upgrades shall not constitute an ongoing expense.

(3) A violation of this section shall be punishable by a fine of not more than \$10,000 for a first offense and not more than \$20,000 for a second or subsequent offense.

(4) The registrar shall promulgate regulations to implement this section.

SECTION 2. The registrar shall promulgate regulations within one year from the effective date of this act.